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LONDON BOROUGH OF CAMDEN

GENERAL PURPOSES (DEVELOPMENT CONTROL) SUB-COMMITTEE

KING'S CROSS DEVELOPMENT APPLICATIONS - ARRANGEMENTS FOR THE MEETING

Meetings Timetable

The King's Cross development applications will be considered by the Development Control Sub-Committee over three meetings held in the Camden Council Chamber in the Town Hall, Judd Street, London WC1H 9JE on the following dates and times:

- **Wednesday 8th March 2006 at 7.00pm**
- **Thursday 9th March 2006 at 6.00pm**
- **Thursday 9th March 2006 at 7.00pm**

The first meeting on Wednesday 8th March is likely to deal with:

- The Council Officers' presentation on the applications
- The deputations from the public; and
- The applicants' response.

The second meeting at 6.00 pm on Thursday 9th March 2006 will deal with any business remaining from the 8th March meeting together with representations from Ward Councillors and Members, if any.

The last meeting at 7.00pm on Thursday 9th March 2006 will be for the Sub-Committee to discuss the applications and then make its final decisions.

The reports that the Sub-Committee considers will be as set out on the agenda. You may have seen a preagenda version of the report, which was circulated to allow early reading. The Sub-Committee will be using the final committee report (which is part of the agenda) to reach a decision. You should therefore also have a copy of the final report and copies are available from Ms Elizabeth Dowuona, the Clerk to the Sub-Committee (contact details below).

The meetings will all start promptly and you are asked to ensure that if you wish to attend you arrive well in advance (see below for further details).

Each of the meetings will be webcast and can be viewed over the internet on http://www.camden.ukcouncil.net/. In addition, you can watch the webcast after the meetings on the webcast archive.

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On this occasion, in order to ensure there is sufficient time for the deputations, a judgement will be made closer to the meeting on how long each deputation will be given. This will be dependant on the number of deputation requests received. Those requesting deputations may be encouraged to make a joint statement at the meeting in order to allow as many deputations as possible to be heard, and you may be contacted by the Clerk of the Sub-Committee on this matter.

Because of the level of interest in this decision, each deputation will be limited to three people. It is intended that those who have requested a deputation and submitted their statement will be seated in the Chamber itself, though due to limited seating, it may be necessary for some members of the deputation to sit in dedicated seating in one of the public galleries. You will be advised on the evenings of the meetings where you will be sitting.

Lobbying

Interested parties, i.e. the applicant or any person or organisation objecting or supporting an application, must not speak to or lobby individual Members or the Sub-Committee before or during the course of the meeting, except as part of a deputation. In this case, this also means that Sub-Committee Members must not be contacted overnight between 8th March and 9th March meetings.

Seating Arrangements

Because of the level of public interest, the proposed seating arrangements are as follows:

The only people allowed in the Council Chamber itself will be:

- Members of the Sub-Committee
- Other Councillors
- Officers of the Council
- The Applicants and their advisers
- Those seeking to make a deputation
- Members of the Press

All members of deputations will be asked to gather in a clearly marked area on the nights of the meetings and once their details have been taken they will be invited to take their seats first. All members of deputations are therefore asked to be at the Town Hall by 6.30 pm on 8th March and if relevant by 5.30pm on 9th March 2006.

All other people who wish to attend the meetings will be invited into the public gallery on a first-come first-served basis. If you wish to attend the meeting, you should queue in the clearly marked area at the Judd Street entrance of the Town Hall on the nights of the meetings and you will then be provided with a ticket and advised where you will be seated. Again you are advised to arrive by 6.30 pm at the latest on 8th March and by 5.30 pm on the 9th March.

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GUIDANCE NOTE ON PROCEDURES FOR GENERAL PURPOSES (DEVELOPMENT CONTROL) SUB-COMMITTEE

INTRODUCTION

This document sets out the Procedures for the Development Control Sub-Committee. They help to give effect to the recommendation of the Nolan Committee on Standards of Conduct in Local Government that all planning authorities should have well-documented practices and procedures designed to avoid grounds for allegations of impropriety. The main purpose of the Procedures is to ensure that the Sub-Committee acts reasonably and openly in dealing with planning matters and to protect the Council and individual Members from allegations of unfairness, findings of maladministration and legal challenge.

The Procedures are in two parts. Part 1 contains information for members of the public about how representations can be made to the Sub-Committee and how it makes decisions. Part 2 gives advice to Members about how they should deal with interests they may have in a matter and other relevant matters. This advice reflects the Council's Code of Conduct and the advice of the Local Government Ombudsman.

If during the course of a meeting it appears that the Procedures are not being followed, the Legal and Committee Officers will bring this to the attention of the Chair, who will be asked to take appropriate action. Breaches can result in matters being referred to the Standards Board for England.

PART 1

HOW THE SUB-COMMITTEE OPERATES: INFORMATION FOR MEMBERS OF THE PUBLIC

MAKING REPRESENTATIONS TO THE SUB-COMMITTEE

All representations to the Sub-Committee should deal with the planning merits of a case only, and must not contain anything defamatory or discriminatory. If a person or an organisation wants to make a representation to the Sub-Committee about an item on an agenda they should not contact Members directly. Instead they should either:-

(i) Write to the Clerk of the Development Control Sub-Committee, Committee Services, Town Hall, Judd Street, London, WC1H 9JE. (Tel: 0207 974 1913/6065, e-mail address: DC@camden.gov.uk Fax: 0207 974 5921). The Clerk will circulate to the Members all "written representations" received no later than noon the day before the meeting.

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2. HOW DECISIONS ARE TAKEN AT THE MEETING

In very straightforward cases where the recommendation is to approve, the Sub-Committee sometimes makes a decision based solely on the Officer's report without an Officer presentation or extensive debate. However most matters under consideration are dealt with as follows:

the Chair takes the item in the order listed on the agenda and announces its name and the nature of the proposal;
the planning Officer (where necessary) briefly introduces the item;
deputation (if any) - 5 minutes;
deputation response - 5 minutes;
the Sub-Committee may put questions to those who have spoken;
the Sub-Committee then debates the matter seeking to avoid repetition of issues already raised and does not hear any additional representations or comments, but may seek clarification from Officers.

When the Chair considers that there has been sufficient debate, he/she will call for a decision. A vote may be taken on the recommendation in the report or on a motion moved by a Member of the Sub-Committee, altering the recommendation.

Where the Sub-Committee is minded not to follow Officers' recommendations, the Chair will ask Members to identify specific reasons for this. Officers will then be asked to advise on the sustainability of these reasons and their validity in planning terms. The Sub-Committee may very occasionally exclude members of the public and the press to consider legal advice.

SITE VISITS BY THE SUB-COMMITTEE

Occasionally the Sub-Committee may defer taking a decision on an item in order to make a site visit to clarify some aspect of a matter they are considering. Reasons for a site visit being made are recorded by the Committee Officer.

Officers will contact the applicant, agent, objector or third party as appropriate to provide access to the site or premises. No formal invitation is normally sent to other interested parties although they will be informed that the matter has been deferred for a site visit.

No attempt may be made to make representations or lobby the Sub-Committee or individual Members during a site visit. Members will not take any decision during the site visit but may ask questions or seek clarification, particularly about the layout of the site. The planning officer accompanying the group will record the date of the visit, Members present and any other relevant information.

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2. GENERAL PROTOCOL FOR MEMBERS

Councillors who are not Members of the Sub-Committee

A Councillor who is not a Member of the Sub-Committee may speak at a meeting, with the agreement of the Chair. Members should disclose any interest they may have, including the fact that they have been in contact with objectors, the applicant, agent or an interested party if this is the case and whether they are speaking on behalf of such persons or any particular interest.

Any Councillor who is not on the Sub-Committee but who is at one of its meetings would normally sit separately, so as to demonstrate clearly that they are not taking part in the discussion, consideration or vote. They should not communicate with Members of the Sub-Committee or pass papers or documents to them before or during the meeting.

Being Seen to Act Fairly

The Local Government Ombudsman advises that not only must members of planning committees act fairly, they must be seen to act fairly. Consequently during the course of meetings Members should not discuss (or appear to discuss) any matter with any members of the public nor should they accept letters or documents from members of the public. Members are also advised to be cautious about speaking to members of the public in the time leading up to the meeting.

Members should be Present throughout Consideration of an Item.

Members making a decision on any particular item should ensure that they are present throughout its consideration. If they join the meeting or go out and return to it part way through a particular item they should refrain from participating in the discussion and not vote on that item.

Use of Political Whips

Members are advised that any political group meeting prior to the Sub-Committee meeting should not be used to decide how Councillors should vote. The Local Government Ombudsman considers that the "whipping" of group meetings in this way is maladministration.

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NOTE FROM LEGAL DIVISION

In carrying out its duties in relation to planning matters, the Council must have regard to a number of statutory provisions. This note summarises some of the most important provisions and provides information on other relevant matters for the benefit of Members of the Development Control Sub- Committee and members of the public.

It should be noted that Members of the Sub-Committee are familiar with relevant statutory provisions and have received training on them and are consequently aware of the need to give effect to such provisions (where appropriate) in relation to all matters under consideration at this Meeting.

STATUTORY DUTIES IN RELATION TO THE DEVELOPMENT PLAN.

In determining any planning application, the Council is required to have regard to the provisions of its Development Plan so far as material to the application and to any other material considerations.

Central Government guidance will always be a very significant material consideration.

Where in making a determination under the Planning Acts regard is to be had to the adopted Development Plan, the determination shall be made in accordance with the plan unless material considerations indicate otherwise.

This provision applies not just to determining planning applications but also to other planning matters e.g. considering whether to take enforcement action to remedy a breach of planning control. The Council's current adopted Development Plan is the London Borough of Camden Unitary Development Plan (UDP) together with the Mayor of London Spatial Development Strategy for Greater London (The London Plan).

Other guidance, which has been formally adopted by the Council (e.g. Supplementary Planning documents , conservation area statements, planning briefs), will all be material considerations of some weight (where relevant.)